

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into as of the Effective Date by and between Acme Vendor LLC ("Provider") and the undersigned customer ("Client").

1. SERVICES

Provider shall provide the software development and consulting services described in one or more Statements of Work ("SOW").

2. TERM AND AUTO-RENEWAL

This Agreement shall commence on the Effective Date and continue for an initial term of one (1) year. Thereafter, this Agreement shall automatically renew for successive one (1) year terms unless Client provides written notice of non-renewal no later than ninety (90) days prior to the end of the then-current term. Fees may increase by up to fifteen percent (15%) upon each renewal at Provider's sole discretion.

3. FEES AND PAYMENT

Client shall pay all invoices within fifteen (15) days of receipt. Any amount not paid when due shall accrue interest at the rate of one and one-half percent (1.5%) per month. Provider may suspend all services immediately if any invoice is more than five (5) days past due.

4. TERMINATION

Provider may terminate this Agreement at any time, for any reason or no reason, upon ten (10) days written notice to Client. Client may terminate only for Provider's uncured material breach following a sixty (60) day cure period. Upon termination, all prepaid fees are non-refundable.

5. INDEMNIFICATION

Client shall defend, indemnify, and hold harmless Provider and its officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including attorneys' fees) arising out of or relating to this Agreement, regardless of the cause and even if caused by Provider's own negligence.

6. LIMITATION OF LIABILITY

IN NO EVENT SHALL PROVIDER'S TOTAL LIABILITY EXCEED ONE HUNDRED DOLLARS (\$100). PROVIDER SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, OR CONSEQUENTIAL DAMAGES. CLIENT'S LIABILITY UNDER THIS AGREEMENT SHALL NOT BE SUBJECT TO ANY CAP OR LIMITATION.

7. INTELLECTUAL PROPERTY

All work product, deliverables, inventions, and materials created by Client in connection with this Agreement, including any pre-existing Client materials incorporated therein, shall be the sole and exclusive property of Provider.

8. NON-COMPETE

During the term and for a period of three (3) years thereafter, Client shall not, anywhere in the world, engage or invest in any business that competes with Provider or engage any of Provider's personnel.

9. CONFIDENTIALITY

Client shall keep confidential all information disclosed by Provider. This obligation survives indefinitely. Provider has no corresponding confidentiality obligation with respect to Client's information.

10. DISPUTE RESOLUTION

Any dispute shall be resolved by binding arbitration administered in Provider's home jurisdiction. Client waives any right to a jury trial and any right to participate in a class action. The prevailing party shall be Provider.

11. GOVERNING LAW

This Agreement shall be governed by the laws of the jurisdiction in which Provider maintains its principal place of business, without regard to conflict-of-laws principles.

12. ASSIGNMENT

Provider may assign this Agreement to any party without notice or consent. Client may not assign this Agreement without Provider's prior written consent, which may be withheld for any reason.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.